SPECIAL BENCH **ITEM NO. 112**

IN THE NATIONAL COMPANY LAW TRIBUNAL,
ALLAHABAD BENCH, PRAYAGRAJ
(through web-based video conferencing platform)

CP (CAA) No. 18/ALD/2022
(2nd Motion)
Under Section 230-232 of the Companies Act, 2013

Date of order : 12.01.2023

In the matter of Scheme of Arrangement between:

P.R.R. ICE & COLD STORAGE PRIVATE LIMITED
(CIN: U15139UP2007PTC033728)
……. **Applicant No. 1 Transferor Company / Demerged Company**

WITH
RAMVATIMURLI SHEETGRAH PRIVATE LIMITED
(CIN: U74999UP2018PTC100722)

……. **Applicant No. 2 Transferee Company / Resulting Company**

Coram: **HON'BLE MR. PRAVEEN GUPTA, MEMBER (JUDICIAL)**
HON'BLE MR. SUBRATA KUMAR DASH, MEMBER (TECHNICAL)

Present through video conferencing:

For the Applicant Companies : Mr. Shahid Kazmi, Adv.
FOR RoC : Mr. Shivendra Bahadur, CGSC.

Per: Mr. Praveen Gupta, Member (Judicial)

ORDER

1. This is a joint Second Motion company petition filed by the Applicant Companies, namely, **P.R.R. ICE & Cold Storage Private Limited** (Transferor Company/Applicant Company No. 1) and **Ramvatimurli Sheetgrah Private Limited** (Transferee Company/Applicant Company No. 2) in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules).

-Sd- ***-Sd-***

2. The petitioner companies have prayed for sanctioning of the Scheme of Demerger in the petition and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections.

3. The First Motion application seeking directions for Dispensing with the meetings of the Equity Shareholders and Secured and Unsecured Creditors of all the Applicant Companies was filed before this Tribunal vide Company Application No. CA (CAA) No. 07/ALD of 2021 and based on such application moved under Sections 230-232 of the Companies Act, 2013, (for brevity, the 'Act') necessary directions were issued on 08.07.2021. In the order dated 08.07.2021, the meetings of equity shareholders, Secured Creditors and Unsecured Creditors of all the Applicant Companies were dispensed with for the reasons mentioned in the aforesaid order.

4. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have been discussed in detail in the order dated 08.07.2021.

5. The notice of hearing will be advertised in "Business Standard" in English language, and "Business Standard" in Hindi language, having wide circulation in Hathras (U.P) by not less than 10 days before the next date fixed for hearing.

6. In addition to the above notice, the Petitioner Companies shall serve the notice of the petition within two weeks on the following Authorities namely, (a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; New Delhi; (b) Registrar of Companies, Kanpur, Uttar Pradesh; (c) Official Liquidator; Allahabad, Uttar Pradesh; (d) Jurisdictional Income Tax Authority by mentioning the PAN of the Company along with a copy of this petition by speed post immediately.

-Sd- ***-Sd-***

7. The Ld. Counsel representing the petitioner states that there are no others Sectoral Regulators except for the aforesaid concerned authorities namely Regional Director, RoC and Income Tax Authorities and to that effect he undertakes to file an affidavit. The said affidavit would be filed within a period of two weeks.

8. The petitioner companies shall at least 7 days before the date of hearing of the petition file an affidavit regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above.

9. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice have been given be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

10. The petitioner companies shall also file an affidavit stating about the objections, if any, received from public pursuant to publication of notice of hearing in the newspapers.

11. The next date of hearing of the petition shall be on **01.03.2023** for further consideration.

12. The registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

-Sd-
(Subrata Kumar Dash)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

12th January, 2023
Md. Zaid
(Stenographer)